



Our ref: IM-72913

13 May 2025

Dear Interested Party

Re: ACCC seeking your views: Cleanaway's proposed acquisition of Contract Resources

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on Cleanaway Waste Management Ltd (**Cleanaway**)'s proposed acquisition of Contract Resources Group Pty Ltd (**Contract Resources**) (the **Proposed Acquisition**).

Cleanaway is an Australian-based recycling, waste management, and industrial services company. Contract Resources is a specialist provider of industrial services for complex and high value assets in the energy and oil and gas sector.

Industrial services involve the provision of maintenance and cleaning services to industrial facilities, plants, and equipment with many customers for these services operating in the mining, infrastructure, and oil and gas sectors.

Further details are provided at **Attachment A**.

The ACCC's investigation is focused on the impact that the Proposed Acquisition would have on competition.

In particular, we are seeking your views on:

- the extent to which Cleanaway and Contract Resources compete with one another in industrial services,
- alternative supply options that exist for customers of Cleanaway and Contract Resources,
- circumstances in which industrial services and waste management services are purchased together or separately, and
- whether the integration of Contract Resources' industrial service capabilities with Cleanaway's waste management interests would make it difficult for alternative suppliers to compete.

Further issues you may wish to address are set out at **Attachment B**.

This matter is public, and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the Proposed Acquisition is in section 50 of the *Competition and Consumer Act 2010*. Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by **5pm on 27 May 2025** via email to mergers@accc.gov.au with the title: Submission re: Cleanaway – Contract Resources. If you require more time to respond, please let us know.

If you would like to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC will not publish submissions regarding the Proposed Acquisition. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the CCA. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, if the information provided to the ACCC is of a confidential nature, please indicate as such. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Morag Bond', is positioned below the 'Yours sincerely' text.

Morag Bond
General Manager
Merger Investigations

Attachment A – Overview of the merger parties and the Proposed Acquisition

The Proposed Acquisition

Cleanaway proposes to acquire 100 per cent of the shares in Contract Resources.

The acquirer - Cleanaway

Cleanaway is an ASX-listed company that provides recycling, waste management and industrial services in Australia.

Cleanaway's industrial services business is focused on customers in the mining and resources, construction, heavy industry, manufacturing and civil infrastructure sectors. Cleanaway's industrial services offering includes:

- high pressure water services,
- vacuum loading,
- non-destructive digging,
- cold cutting,
- tank cleaning and maintenance,
- emergency response
- decontamination and chemical cleaning,
- site remediation, and
- CCTV surveying.

Cleanaway is also a major supplier of waste management services in Australia.

The target - Contract Resources

Contract Resources is a specialist provider of industrial services focused on supplying services such as catalyst handling and specialised mechanical services, including shutdown and maintenance services as well as commissioning and decommissioning services to customers in the oil and gas sector.

Contract Resources also provides baseline industrial services such as:

- high pressure water services,
- vacuum loading,
- non-destructive digging,
- cold cutting,
- tank cleaning and maintenance,
- emergency response, and
- decontamination and chemical cleaning.

Contract Resources has a specialist processing facility in Gap Ridge, WA, which is used for processing hazardous materials including mercury-impacted waste.

Contract Resources is currently owned by two private equity firms, SCF and Viburnum.

Industry Background

Industrial services

Industrial services predominantly comprise the provision of maintenance and cleaning services to industrial facilities, plants, and equipment including those used in the operation of the mining, infrastructure, and oil and gas sectors.

Waste management services

Waste management services encompass the collection, treatment and disposal of various types of hazardous and non-hazardous waste, including waste created by or collected during the provision of industrial services.

Attachment B

1. Provide a brief description of your business or organisation.
2. Outline the reasons for your interest in the Proposed Acquisition, including any commercial relationship/s with Cleanaway and/or Contract Resources.

The questions below are divided into questions for customers and competitors, but you are welcome to comment on any question/s in any category.

Industrial services

Questions for customers

3. Identify and describe any industrial services you require for your project/operations and how you acquire industrial services (for example, through formal tender or other methods).
4. If you also obtain waste management services, please indicate:
 - a. whether you generally purchase industrial services and waste management services together from the same supplier, and/or
 - b. whether there would be benefits to you in acquiring these services from the same supplier.
5. Describe how closely Contract Resources and Cleanaway compete in the supply of industrial services in Australia, taking into account factors such as:
 - a. price
 - b. service quality or technical expertise
 - c. customer type
 - d. geographic location, and
 - e. reputation.
6. Identify your current suppliers of these services, including the length of time you have used each supplier.
7. Identify any alternative suppliers you could acquire your required service/s from.
8. Please explain whether the industrial services you require create waste, and what arrangements you or the provider of the services have in place to manage and dispose of this waste.

Questions for competitors

9. Identify the industrial services you supply in Australia. For each service you supply, identify:
 - a. the geographic locations where you supply,
 - b. your target customers
 - c. your competitors for the service, and

- d. if the Proposed Acquisition will impact your ability to compete to provide these services.
10. Discuss the likelihood of, and timeframe for, new entry or expansion in the supply of industrial services. Identify any recent examples of new entry or expansion.

Waste management services

Questions for customers of Contract Resources' Gap Ridge Facility

- 11. Provide details of any hazardous waste management services you require for your project/operations (including a description of the type of waste handled) and how you acquire hazardous waste management services (for example, through formal tender or other methods).
- 12. Identify your current suppliers of hazardous waste management services, including the length of time you have used each supplier.
- 13. Identify any alternative suppliers of hazardous waste management services that you could engage.
- 14. Describe whether Contract Resources and Cleanaway compete in the supply of hazardous waste management and if so how closely they compete.

Questions for competitors of Cleanaway in waste management services

- 15. Identify any industrial services you acquire from Contract Resources, and any alternative suppliers of these services.
- 16. Discuss any anticipated changes to the ability of other waste management service providers to compete with Cleanaway should the proposed acquisition proceed.

Additional information

- 17. Please provide any additional information or comments that you consider relevant to the ACCC's consideration of the Proposed Acquisition.